

25NNCV04773 25NNCV04773

County: los-angeles

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[TENTATIVE] ORDER GRANTING IN
PART AND DENYING IN PART PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE

I. INTRODUCTION

On July 8,
2025, Plaintiffs Yan Chen and Minhua Wang ("Plaintiffs") filed this action
against Defendant BMW of North America, LLC ("BMW" or "Defendant") asserting
claims under the Song-Beverly Consumer Warranty Act arising from the lease of a
2023 BMW i4. Plaintiffs allege three causes of action: (1) breach of express
warranty, (2) breach of implied warranty, and (3) violation of Civil Code
section 1793.2.

On March 27, 2026, Plaintiff filed
the instant motion to compel further responses to Requests for Production
(RFP), Set One. Defendant filed an opposition on July 6, 2026, and Plaintiff
filed a reply on July 10, 2026.

Meet and confer

A motion to compel further
responses "shall be accompanied by a meet and confer
declaration." (Code Civ. Proc., §§ 2030.300, subd. (b); 2031.310,
subd. (b).) The declaration must state facts showing
a reasonable and good faith attempt at an informal resolution of each issue
presented in the motion. (Code Civ. Proc., § 2016.040.)

Here,

counsel participated in a telephonic meet and confer on March 13, 2026. Thus, requirement is met.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (*Id.*) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.

III. ANALYSIS

A party moving to compel further responses to requests for production must demonstrate good cause justifying the discovery sought. (Code Civ. Proc., § 2031.310, subd. (b)(1).) Once good cause is shown, the burden shifts to the responding party to justify any objections. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

As an initial matter, Defendant served verified supplemental responses to Requests for Production Nos. 23-28 and 30-32 on July 6, 2026, after Plaintiffs filed the instant motion. Defendant contends the supplemental responses render the motion moot. (Opposition, pp. 2-3.) The Court disagrees. Because Plaintiffs contend the supplemental responses remain deficient, the Court must determine whether the supplemental responses comply with the Discovery Act.

RFP Nos. 23-28

Requests for Production Nos. 23-28

seek documents concerning Defendant's warranty policies, repurchase procedures, goodwill policies, and practices relating to the diagnosis and repair of warranty claims. (SS, pp. 13-26.) Plaintiffs contend these documents are

relevant to Defendant's knowledge of the alleged defects and whether Defendant willfully failed to comply with its obligations under the Song-Beverly Consumer Warranty Act.

The Court agrees, Plaintiffs have demonstrated good cause for the requested discovery.

Defendant's objections that the requests are overboard, unduly burdensome, vague, and seek confidential or proprietary information are not supported by sufficient factual showing. (SS, pp. 15-18.) Generalized assertions of burden and confidentiality, without competent evidence demonstrating the burden of compliance or why a protective order would be insufficient, do not justify withholding otherwise discoverable information.

The Court finds Defendant's supplemental responses to Requests for Production Nos. 23-28 remain deficient. Defendant shall serve further verified responses, without unsupported boilerplate objections, and produce all responsive, nonprivileged documents. To the extent responsive documents are withheld based on a claim of privilege, Defendant shall comply with Code of Civil Procedure section 2031.240.

Thus, motion is GRANTED as to RFP Nos. 23-28.

RFP Nos. 30-31

Requests for Production Nos. 30 and 31 seek documents relating to customer complaints, field reports, and other documents concerning alleged defects in vehicles other than the subject vehicle. Plaintiffs contend the requested discovery is relevant to Defendant's knowledge of the alleged defects and Plaintiffs' claim for civil penalties under the Song-Beverly Consumer Warranty Act.

As to RFP No. 30, the Court finds Plaintiffs have demonstrated good cause. Discovery concerning substantially similar defects in vehicles of the same make, model, and year may be relevant to Defendant's knowledge of the alleged defects and whether any violation of the Song-Beverly Consumer Warranty Act was willful. Defendant's generalized objections of overbreadth, burden, and confidentiality do not justify withholding otherwise discoverable information. Thus, the motion is GRANTED as

to RFP No. 30.

As to RFP No. 31, however, the Court reaches a different conclusion. Unlike RFP No. 30, RFP No. 31 is not reasonably limited to the subject vehicle or substantially similar vehicles and is not narrowly tailored to the defects alleged in this action. As drafted, the request is overbroad and seeks information beyond that reasonably necessary to Plaintiffs' claims. Thus, the motion is DENIED as to RFP No. 31.

RFP No. 32

Request for Production No. 32 seeks the KeyData and ISTA diagnostic reports generated for the subject vehicle.

The Court finds Plaintiffs have demonstrated good cause for the requested discovery. The requested diagnostic reports are directly relevant to the alleged defects, Defendant's repair efforts, and the issues presented in this action. Defendant's generalized objections that the request is vague, overbroad, unduly burdensome, and seeks confidential information are not supported by a particularized factual showing and do not justify withholding otherwise discoverable information. To the extent Defendant withholds responsive documents on the basis of privilege, it shall comply with Code of Civil Procedure section 2031.240.

Thus, the motion is GRANTED as to RFP No. 32.

IV. CONCLUSION & ORDER

The Court GRANTS Plaintiff's motion to compel further responses to RFP Nos. 23-28, 30 and 32, and DENIES it as to RFP No. 31. Defendant shall serve further responses within 30 days' notice of this order.

Plaintiff is ordered to give notice.

Dated: July 17, 2026

JARED

D. MOSES

JUDGE OF THE SUPERIOR COURT